

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
June 4, 2026  
8:30 a.m./1:30 p.m.

**2. MEGAN DOYLE V. GRANT DOUGLAS DAKIN**

**25FL0122**

On March 11, 2026, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders as well as attorney's fees. She filed her Income and Expense Declaration on March 10<sup>th</sup>. All required documents were electronically served on March 18<sup>th</sup>.

The parties attended Child Custody Recommending Counseling (CCRC) on April 10, 2026. A report containing agreements and recommendations was prepared and mailed to the parties on May 8<sup>th</sup>.

Respondent filed a Responsive Declaration to Request for Order on May 15<sup>th</sup>, it was served on May 11<sup>th</sup>.

Petitioner is requesting an order requiring the custodial parent to immediately notify the other parent in the event of an emergency. She also requests a right of first refusal if the custodial parent is unavailable for 24 hours or, alternatively, a parenting schedule that allows the minor to visit with Respondent during his non-work hours. She asks that the custodial parent be ordered to arrange transportation to and from the minor's regularly scheduled activities and minor's counsel to be appointed on behalf of the minor. Finally, Petitioner requests attorney's fees in the amount of \$6,000 pursuant to Family Code § 2030.

Respondent opposes the RFO and asks the court to sanction Petitioner in the amount of \$5,000 pursuant to Family Code § 271.

After reviewing the filings as outlined above the court finds the agreements and recommendations contained in the May 8, 2026 CCRC report to be in the best interests of the minors and they are hereby adopted as the orders of the court. The parties are to maintain a 50/50 parenting timeshare. Respondent's parenting time is to coincide with his days off work.

The requests for a right of first refusal and the appointment of Minor's Counsel are both denied. The court has already specified that the right of first refusal does not apply in absences due to work. Regardless, the new parenting schedule should remedy that issue. Turning to the appointment of Minor's Counsel, the court does not find it necessary to do so at this time.

Each parent is ordered to arrange for transportation to and from the minor's regularly scheduled activities during his or her parenting time. If that parent is unable to arrange for transportation, the non-custodial parent shall be given the opportunity to

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transport the minor to and from the activity only. Transportation time shall not be used to expand or extend the non-custodial parent's parenting time.

The request for attorney's fees is granted in part. The public policy of Family Code section 2030 is to provide "at the outset of litigation, consistent with the financial circumstances of the parties, parity between spouses in their ability to obtain effective legal representation." *In Re Marriage of Keech*, 75 Cal. App. 4<sup>th</sup> 860, 866 (1999). This ensures each party has access to legal representation to preserve each party's rights. In the face of a request for attorney's fees and costs, the court is to make findings on "whether there is a disparity in access to funds to retain counsel, and whether one party is able to pay for legal representation of both parties." Fam. Code § 2030(a)(2).

Family Code section 2032 works in tandem with Section 2030 to ensure that any award of costs and fees is just and reasonable. Fam. Code § 2032. "In determining what is just and reasonable under the relative circumstances, the court shall take into consideration the need for the award to enable each party, to the extent practical, to have sufficient financial resources to present the party's case adequately." *Id.* at (b).

Here, the court does find a disparity in access to income as well as Respondent's ability to pay for the attorney's fees of both parties. That said, the court finds \$6,000 to be an unreasonable request for fees covering the preparation and filing of a simple RFO. Instead, the court is awarding \$1,500 in attorney's fees. Respondent is to pay this amount directly to Petitioner's attorney. The amount may be paid in one lump sum or in monthly increments of \$250 commencing on June 15, 2026 and continuing on the 15<sup>th</sup> of each month thereafter until paid in full (approximately 6 months). If any payment is missed or late the entire amount shall become immediately due and payable.

Finally, turning to the request for sanctions, the request is denied. Family Code Section 271 states in pertinent part, "...the court may base an award of attorney's fees and costs on the extent to which the conduct of each party or attorney furthers or frustrates the policy of the law to promote settlement of litigation and, where possible, to reduce the cost of litigation by encouraging cooperation of the parties..." Fam. Code § 271(a). Petitioner's filing of the present motion did not frustrate the policy of the law where it was an issue contested by both parties and was not filed solely for harassment or frivolous purposes. Thus, the court does not find grounds for sanctions at this time.

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Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

**TENTATIVE RULING #2: AFTER REVIEWING THE FILINGS AS OUTLINED ABOVE THE COURT FINDS THE AGREEMENTS AND RECOMMENDATIONS CONTAINED IN THE MAY 8, 2026 CCRC REPORT TO BE IN THE BEST INTERESTS OF THE MINORS AND THEY ARE HEREBY ADOPTED AS THE ORDERS OF THE COURT. THE PARTIES ARE TO MAINTAIN A 50/50 PARENTING TIMESHARE. RESPONDENT'S PARENTING TIME IS TO COINCIDE WITH HIS DAYS OFF WORK.**

**THE REQUESTS FOR A RIGHT OF FIRST REFUSAL AND THE APPOINTMENT OF MINOR'S COUNSEL ARE BOTH DENIED.**

**EACH PARENT IS ORDERED TO ARRANGE FOR TRANSPORTATION TO AND FROM THE MINOR'S REGULARLY SCHEDULED ACTIVITIES DURING HIS OR HER PARENTING TIME. IF THAT PARENT IS UNABLE TO ARRANGE FOR TRANSPORTATION, THE NON-CUSTODIAL PARENT SHALL BE GIVEN THE OPPORTUNITY TO TRANSPORT THE MINOR TO AND FROM THE ACTIVITY ONLY. TRANSPORTATION TIME SHALL NOT BE USED TO EXPAND OR EXTEND THE NON-CUSTODIAL PARENT'S PARENTING TIME.**

**THE REQUEST FOR ATTORNEY'S FEES IS GRANTED IN PART. THE COURT IS AWARDING \$1,500 IN ATTORNEY'S FEES. RESPONDENT IS TO PAY THIS AMOUNT DIRECTLY TO PETITIONER'S ATTORNEY. THE AMOUNT MAY BE PAID IN ONE LUMP SUM OR IN MONTHLY INCREMENTS OF \$250 COMMENCING ON JUNE 15, 2026 AND CONTINUING ON THE 15<sup>TH</sup> OF EACH MONTH THEREAFTER UNTIL PAID IN FULL (APPROXIMATELY 6 MONTHS). IF ANY PAYMENT IS MISSED OR LATE THE ENTIRE AMOUNT SHALL BECOME IMMEDIATELY DUE AND PAYABLE.**

**THE REQUEST FOR SANCTIONS IS DENIED.**

**PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.**

**NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE**

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**TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.**

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**3. CORAL ERICSON (fka BRUNET) V. WILFRED BRUNET**

**PFL20210050**

On March 6, 2025, Respondent filed a Request for Order (RFO) seeking custody and visitation orders.

The parties attended Child Custody Recommending Counseling (CCRC) on April 9<sup>th</sup> and agreed to maintain all current orders. A report with those agreements was prepared the same day. It was mailed to the parties on April 10<sup>th</sup>.

There is no Proof of Service for the RFO therefore the court drops the matter from calendar.

**TENTATIVE RULING #3: THIS MATTER IS DROPPED FROM CALENDAR DUE TO LACK OF PROPER SERVICE.**

**NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.**